TRANSCRIPT OF CALIFORNIA HIGHWAY PATROL DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024

Location: Interstate 580 East, Livermore, Alameda County, California

CHP Case Number: RJ68845

Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording.

LEGEND:

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed text]: Actions, observations, or non-verbal events visible on recording

VERBATIM TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:45)

00:54:36 — [CHP vehicle heading eastbound on I-580.]

00:55:25 — [CHP vehicle begins to pull over onto shoulder and behind the Tesla.]

00:55:37 — [CHP vehicle comes to a full and complete stop; audio recording activates.]

00:55:53 — **Melano:** "It's a rental. Huh."

00:55:57 — [Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]

00:56:00 — [Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]

00:56:05 — [Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]

00:56:09 — **Melano:** "I think it's booze."

00:56:07 — [Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]

00:56:07 — **Melano:** "It wasn't here earlier when we passed by."

00:56:30 — **Melano:** "Oh look at this."

00:56:30 — [Meza-Gonzalez continues knocking on window to wake Plaintiff.]

00:56:40 — **Melano:** "Open the window."

00:56:43 — [Passenger side door is opened by Officer Joselyn Melano.]

00:56:46 — **Melano:** "Hello."

00:56:46 — **Plaintiff:** "Uh-huh."

00:56:47 — **Melano:** "Are you okay?"

00:56:48 — **Plaintiff:** "Yeah, we good."

00:56:49 — **Melano:** "Why are you here? Just tired?"

00:56:50 — [Plaintiff repeatedly says "no."]

00:56:52 — **Melano:** "What do you mean?"

00:56:54 — [Plaintiff repeatedly says "no."]

00:56:58 — **Plaintiff:** "We're good. We good, we good. Yeah we're straight."

00:57:05 — **Melano:** "OK. Where were you coming from?"

00:57:11 — **Plaintiff:** "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:35 — **Melano:** "OK. How long have you been here for?"

00:57:30 — **Plaintiff:** "I've been here at this place right here for, since a little after midnight."

00:57:39 — **Meza-Gonzalez:** "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — **Plaintiff:** "Oh parked at this parking lot right here?"

00:57:46 — **Meza-Gonzalez:** "This is not a parking lot."

00:57:49 — **Plaintiff:** "Two... two o'clock."

00:57:49 — [Plaintiff still groggy from sleep.]

00:57:51 — **Meza-Gonzalez:** "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — **Plaintiff:** "Yeah I should be home by like 1:30."

00:58:01 — **Meza-Gonzalez:** "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — **Plaintiff:** "Oh uh like 5-7 minutes."

00:58:07 — **Meza-Gonzalez:** "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — **Meza-Gonzalez:** "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — **Meza-Gonzalez:** "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:36 — **Plaintiff:** "Zero."

00:58:37 — **Meza-Gonzalez:** "You haven't had anything?"

00:58:38 — **Plaintiff:** "No, no."

00:58:34 — **Meza-Gonzalez:** "Okay. What's in that cup right there?"

00:58:46 — **Plaintiff:** "Don't drink it. Yeah don't drink it."

00:58:49 — **Melano:** "What is it? Let me see."

00:58:51 — **Melano:** "Is it water? No this is piss. This is pee."

00:58:57 — **Plaintiff:** "I don't know what that is."

00:58:59 — **Melano:** "I'm telling you it's piss. It smells like piss."

00:58:59 — [Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]

00:59:02 — **Meza-Gonzalez:** "No I'm not gonna smell that."

00:59:04 — **Melano:** "Yeah, I'm telling you it's piss."

00:59:05 — **Plaintiff:** "Oh, OK."

00:59:07 — **Melano:** "OK. Leave it there. Put it back."

00:59:12 — **Meza-Gonzalez:** "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:25 – 01:01:16)

00:59:20 — [Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]

00:59:25 — **Meza-Gonzalez:** "And then uh just hop out of your vehicle."

00:59:27 — **Melano:** "Where's your ID at?"

00:59:31 — **Meza-Gonzalez:** "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — **Melano:** "Yeah he said it's in his pocket bro."

00:59:36 — **Meza-Gonzalez:** "Pocket? OK."

00:59:38 — **Meza-Gonzalez:** "What's your first name?"

00:59:39 — **Plaintiff:** "Brendan, sir."

00:59:40 — **Meza-Gonzalez:** "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:38 — [Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]

00:59:46 — **Meza-Gonzalez:** "What's your last name?"

00:59:47 — **Plaintiff:** "Newanforbi."

00:59:50 — **Meza-Gonzalez:** "What's your last name?"

00:59:51 — **Plaintiff:** "Newanforbi."

00:59:53 — **Meza-Gonzalez:** "You could — you could stand here."

00:59:53 — [Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]

00:59:55 — **Meza-Gonzalez:** "So you said your last name was what?"

00:59:57 — **Plaintiff:** "NEW-WAN-FOR-BI."

01:00:00 — **Meza-Gonzalez:** "Newanforbi?"

01:00:01 — **Plaintiff:** "Yes."

00:59:46 — [Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]

01:00:02 — **Meza-Gonzalez:** "OK."

01:00:04 — **Meza-Gonzalez:** "Can I see your ID please?"

01:00:06 — **Melano:** "Meza?"

01:00:06 — [Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]

01:00:07 — **Meza-Gonzalez:** "Did you drink that?"

01:00:08 — **Plaintiff:** "No."

01:00:09 — **Melano:** "Mike's Hard Lemonade. Source alcohol."

01:00:09 — **Meza-Gonzalez:** "No? You didn't drink that?"

01:00:09 — [Plaintiff nods 'no.']

01:00:11 — **Meza-Gonzalez:** "You haven't drank anything since you've been parked?"

01:00:14 — **Plaintiff:** "No."

01:00:15 — **Meza-Gonzalez:** "OK. Can I see your ID? Your ID real quick?"

01:00:17 — [Plaintiff calmly presents ID to Meza-Gonzalez.]

01:00:19 — **Meza-Gonzalez:** "Alright sir, thank you."

01:00:21 — **Meza-Gonzalez:** "Brendan Newanforbi."

01:00:21 — [Officer reading the ID.]

01:00:22 — [Plaintiff quietly nods head yes.]

01:00:24 — **Meza-Gonzalez:** "Uh, do you still live on Cat Tail?"

01:00:26 — [Plaintiff nods head and says yes.]

01:00:28 — **Meza-Gonzalez:** "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — **Plaintiff:** "It wasn't all the way in Oakland."

01:00:37 — **Meza-Gonzalez:** "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — **Plaintiff:** "Yes."

01:00:40 — **Meza-Gonzalez:** "You know where you're at right now?"

01:00:41 — **Plaintiff:** "Right now, Livermore."

01:00:43 — **Meza-Gonzalez:** "You are in Livermore."

01:00:44 — [Plaintiff proceeds to read a highway sign about 50 yards away.]

01:00:44 — **Plaintiff:** "Isabella Avenue, Portola Avenue, ___ Avenue."

01:00:46 — **Meza-Gonzalez:** "Correct."

01:00:50 — **Meza-Gonzalez:** "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — **Plaintiff:** "No sir."

01:00:54 — **Meza-Gonzalez:** "Did you have any alcohol at the party?"

01:00:56 — **Plaintiff:** "No."

01:00:57 — **Meza-Gonzalez:** "No? OK."

01:00:57 — [Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]

01:01:16 — **Meza-Gonzalez:** "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — **Plaintiff:** "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — **Meza-Gonzalez:** "...when you're driving your personal vehicle?"

01:01:56 — **Plaintiff:** "...when I drive my personal vehicle."

01:01:58 — **Meza-Gonzalez:** "OK, is this your car though?"

01:01:59 — **Plaintiff:** "This is a rental."

01:02:02 — **Meza-Gonzalez:** "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — **Plaintiff:** "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — **Meza-Gonzalez:** "OK. Are you sick or injured?"

01:02:17 — **Plaintiff:** "Sorry?"

01:02:18 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:19 — [Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]

01:02:19 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:21 — **Plaintiff:** "Am I sick or injured physically? No."

01:02:26 — **Meza-Gonzalez:** "OK. Are you diabetic or epileptic?"

01:02:28 — **Plaintiff:** "I have — I have been diagnosed with pre-diabetes."

01:02:31 — **Meza-Gonzalez:** "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — **Plaintiff:** "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — **Meza-Gonzalez:** "OK. So you don't have any physical impairments?"

01:02:48 — **Plaintiff:** "Besides the pre-diabetes and the uh..."

01:02:51 — **Meza-Gonzalez:** "Can I have you spit out whatever is in your mouth?"

01:02:51 — [Meza-Gonzalez motions with circular motion, points at his mouth.]

01:02:53 — **Plaintiff:** "Oh I'm sorry, that's — that's just like spit."

01:02:53 — [Plaintiff leaning downward and away from Meza-Gonzalez.]

01:02:54 — **Meza-Gonzalez:** "Is it seeds or what is it?"

01:03:01 — **Plaintiff:** "That's a hotdog, from the hotdog stand."

01:03:05 — **Meza-Gonzalez:** "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — **Plaintiff:** "Sorry."

01:03:10 — **Meza-Gonzalez:** "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like

5 minutes of shut-eye right now?"

01:03:19 — **Plaintiff:** "Yeah like only been 7, yeah."

01:03:28 — **Meza-Gonzalez:** "OK. And what did you last eat? You said a hotdog?"

01:03:31 — **Plaintiff:** "Yeah."

01:03:32 — **Meza-Gonzalez:** "What time did you have the hotdog?"

01:03:34 — **Plaintiff:** "What time is it now sir?"

01:03:35 — **Meza-Gonzalez:** "Uh right now it's 1 AM."

01:03:42 — **Plaintiff:** "Maybe like 11:30."

01:03:47 — **Meza-Gonzalez:** "And you were driving correct? The car, the Tesla?"

01:03:50 — **Plaintiff:** "I was in the driver's seat, yes sir."

01:03:53 — **Meza-Gonzalez:** "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — **Plaintiff:** "Oakland, yes."

01:03:59 — **Meza-Gonzalez:** "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 — [Meza-Gonzalez making hand motions.]

01:04:07 — **Plaintiff:** "Yeah, I'm aware of that."

01:04:12 — **Meza-Gonzalez:** "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — **Plaintiff:** "No sir."

01:04:18 — **Meza-Gonzalez:** "Have you bumped your head recently? Like at all?"

01:04:21 — **Plaintiff:** "I'm not sure."

01:04:23 — **Meza-Gonzalez:** "OK."

01:04:29 — **Meza-Gonzalez:** "Are you under the care of a doctor or dentist?"

01:04:33 — **Plaintiff:** "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — **Meza-Gonzalez:** "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — **Plaintiff:** "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — **Meza-Gonzalez:** "OK. Have you taken any medication or drugs?"

01:04:56 — **Plaintiff:** "No drugs or medicine."

01:05:00 — **Meza-Gonzalez:** "No? OK."

01:05:00 — [Meza-Gonzalez proceeds to command Plaintiff to come to his car.]

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — **Meza-Gonzalez:** "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — **Plaintiff:** "Yes sir."

01:05:22 — **Meza-Gonzalez:** "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — **Meza-Gonzalez:** "Eyes test."

01:06:11 — **Meza-Gonzalez:** "Just continue looking at the tip of my finger, OK?"

01:06:54 — **Meza-Gonzalez:** "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — **Meza-Gonzalez:** "OK."

01:07:04 — [Ends HGN test.]

01:07:05 — **Meza-Gonzalez:** "You can relax."

01:07:06 — **Meza-Gonzalez:** "What do you drive?"

01:07:12 — **Plaintiff:** "I drive a uh Tesla Model Y."

01:07:14 — **Melano:** "You need a jacket or anything?"

01:07:15 — **Meza-Gonzalez:** "I'm good."

01:07:17 — **Meza-Gonzalez:** "Uh, a Tesla Model Y?"

01:07:18 — **Plaintiff:** "A Tesla Model Y."

01:07:21 — **Meza-Gonzalez:** "So you don't drive a, you said you drive a truck right?"

01:07:33 — **Plaintiff:** "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — **Plaintiff:** "Understood."

01:07:42 — **Meza-Gonzalez:** "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — **Plaintiff:** "Understood."

01:07:59 — **Meza-Gonzalez:** "OK, so tilt your head back and close your eyes."

01:08:02 — [Meza-Gonzalez starts timer.]

01:08:40 — [Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]

01:08:41 — **Meza-Gonzalez:** "Stop?"

01:08:44 — [Plaintiff nods head yes.]

01:08:45 — [Meza-Gonzalez stops timer.]

01:08:53 — [Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]

01:08:58 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — **Plaintiff:** "Really?"

01:09:20 — **Meza-Gonzalez:** "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — **Plaintiff:** "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — **Melano:** "We have other tests you could do."

01:09:44 — **Meza-Gonzalez:** "Yeah there's other ones we could do."

01:09:46 — **Plaintiff:** "So I haven't passed any of your tests yet?"

01:09:49 — **Meza-Gonzalez:** "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — **Melano:** "Yeah there's not pass or fail."

01:09:54 — **Plaintiff:** "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — **Meza-Gonzalez:** "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — **Meza-Gonzalez:** "Alright?"

01:10:12 — **Plaintiff:** "I don't think I — I don't know if I can balance on one knee."

01:10:14 — **Meza-Gonzalez:** "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — **Plaintiff:** "I mean I think we can do that. I mean..."

01:10:25 — **Melano:** "It's kind of sketch here bro."

01:10:26 — **Meza-Gonzalez:** "Is it 'cause it's on the side of the freeway?"

01:10:27 — **Melano:** "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

01:10:30 — **Meza-Gonzalez:** "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — **Meza-Gonzalez:** "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — **Plaintiff:** "So you're saying that I am required or not required?"

01:10:54 — **Meza-Gonzalez:** "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

01:11:01 — **Plaintiff:** "And if I choose not to consent to it?"

01:11:03 — **Meza-Gonzalez:** "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

01:11:11 — [Meza-Gonzalez and Melano calibrating breathalyzer.]

01:11:13 — **Meza-Gonzalez:** "Yes or no?"

01:11:15 — **Plaintiff:** "I don't consent to that."

01:11:16 — **Meza-Gonzalez:** "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

01:11:31 — **Meza-Gonzalez:** "Place your hands behind your back."

01:11:33 — **Meza-Gonzalez:** "Separate your feet, point your toes out and don't move, okay?"

01:11:33 — [Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]

01:11:36 — **Melano:** "Go ahead."

01:11:36 — [Melano radios dispatch.]

01:11:42 — **Dispatch:** "Uh so he is on parole for PC 289. He's also a 290 registrant. He's clear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — **Melano:** "He's on parole."

01:12:33 — **Meza-Gonzalez:** "You have the keys right?"

01:12:54 — **Meza-Gonzalez:** "I'm gonna just search you right now."

01:12:54 — [Meza-Gonzalez proceeds with pat down.]

01:13:01 — **Melano:** "You need a property bag or no?"

01:13:02 — **Meza-Gonzalez:** "I got a property bag."

01:13:05 — **Melano:** "OK, look you want me to hold it for you?"

01:13:05 — **Meza-Gonzalez:** "I don't have it on me though."

01:13:14 — [Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]

01:13:31 — **Meza-Gonzalez:** "What's this ankle bracelet for?"

01:13:33 — **Plaintiff:** "Like you said, I am on parole."

01:13:35 — **Melano:** "Yeah."

01:13:38 — **Meza-Gonzalez:** "So you're on post-community supervision?"

01:13:42 — **Plaintiff:** "Uh I think there's a difference between PRCS—"

01:13:43 — **Melano:** "Yeah, there is."

01:13:46 — **Plaintiff:** "PRCS, parole, and uh what's the other one, probation."

01:14:30 — **Melano:** "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — **Plaintiff:** "Not necessarily, I mean..."

01:14:34 — **Melano:** "Like do you want to take your phone with you or something?"

01:14:36 — **Plaintiff:** "Like my motor vehicle record, of course."

01:14:38 — **Melano:** "You want to take your phone with you?"

01:14:39 — **Plaintiff:** "Everybody would probably wanna take their phone."

01:14:42 — **Melano:** "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — **Melano:** "Like phone, wallet, keys."

01:14:53 — **Plaintiff:** "You haven't seen anything else in there that's of value?"

01:14:56 — **Melano:** "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — **Plaintiff:** "Phone, keys, wallet, paperwork."

01:15:06 — [Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]

01:15:54 — **Meza-Gonzalez:** "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — **Meza-Gonzalez:** "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — **Plaintiff:** "I don't know. It seems like torture."

01:16:37 — **Meza-Gonzalez:** "Well the thing is you need to make that decision now because if let's say you decide you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — **Meza-Gonzalez:** "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — **Meza-Gonzalez:** "You wanna choose a chemical breath or blood?"

01:17:13 — **Plaintiff:** "And then I can't drive whatsoever?"

01:17:16 — **Meza-Gonzalez:** "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 — [Meza-Gonzalez closes passenger door, enters driver door.]

01:18:32 — [Meza-Gonzalez: "You got a 130?"]

01:18:34 — **Melano:** "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 — [Melano continues searching vehicle.]

01:19:18 — [Meza-Gonzalez reads chemical test admonishment.]

01:20:49 — **Meza-Gonzalez:** "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — **Plaintiff:** "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — **Meza-Gonzalez:** "So even though you know that you're gonna get suspended?"

01:21:33 — **Plaintiff:** "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — **Plaintiff:** "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — **Meza-Gonzalez:** "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — **Plaintiff:** "I get that."

01:21:54 — **Meza-Gonzalez:** "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — **Plaintiff:** "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — **Meza-Gonzalez:** "So you're refusing to take a test?"

01:22:21 — **Meza-Gonzalez:** "OK."

01:23:11 — **Melano:** "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — **Meza-Gonzalez:** "But he said he was here for seven minutes."

01:23:17 — **Melano:** "Yeah plus we can't tell if—"

01:23:20 — **Melano:** "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — **Melano:** "Let me sanitize my gloves, there was piss everywhere. Gross."

01:23:33 — **Melano:** "Yeah you want to start your warrant?"

01:23:34 — **Meza-Gonzalez:** "I could start the CLETS."

01:23:36 — **Melano:** "Start your CLETS yeah."

01:24:17 — **Melano:** "Any additional charges because he's on parole?"

01:24:17 — **Meza-Gonzalez:** "What's the parole for?"

01:24:21 — **Melano:** "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — **Melano:** "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — **Melano:** "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — **Melano:** "This is the implied consent advisement."

01:36:58 — **Plaintiff:** "Implied consent advisement."

01:37:00 — **Melano:** "Yes sir."

01:37:00 — **Plaintiff:** "It's not a Miranda right?"

01:37:02 — **Melano:** "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — **Plaintiff:** "OK."

01:37:08 — **Melano:** "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 — [Melano reads implied consent advisement.]

01:37:35 — **Plaintiff:** "A choice huh?"

01:37:37 — **Melano:** "Yeah. Blood or breath?"

01:37:39 — **Plaintiff:** "Now when you say required by law, what does that mean?"

01:37:32 — **Melano:** "So you're required by law like you have to do it."

01:37:34 — **Plaintiff:** "And what if I don't?"

01:37:36 — **Melano:** "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:42 — **Plaintiff:** "Yeah we've already been through this man."

01:37:45 — **Melano:** "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — **Plaintiff:** "Sorry, sorry. Yeah we've already been through this."

01:37:49 — **Melano:** "Oh OK."

01:37:50 — **Plaintiff:** "Officer Meza and uh we're good to go."

01:37:53 — **Melano:** "About what? So you already told him which one you want?"

01:37:57 — **Plaintiff:** "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — **Melano:** "Oh Melano sir."

01:38:02 — **Plaintiff:** "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — **Melano:** "So which one are we doing sir? I'm asking you here."

01:38:08 — **Melano:** "Neither?"

01:38:09 — **Plaintiff:** "Yep."

01:38:10 — **Melano:** "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — **Plaintiff:** "I mean that's what Officer Meza said."

01:38:30 — **Melano:** "OK perfect, so you do understand though?"

01:38:35 — **Melano:** "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you

understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — **Melano:** "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — **Meza-Gonzalez:** "No alternator."

01:44:29 — **Melano:** "No? What keeps the battery charged then?"

01:44:34 — **Melano:** "That's a good question huh?"

01:44:37 — **Melano:** "Boss do you think your car has an alternator or nah?"

01:44:40 — **Plaintiff:** "I don't think electric vehicles have alternators."

01:44:42 — **Melano:** "That's what I'm saying 'cause it doesn't get—"

01:44:43 — **Meza-Gonzalez:** "The alternator is used to start up the car."

01:44:47 — **Melano:** "No, the battery is used to start the car. The alternator—"

01:44:53 — **Plaintiff:** "Teslas have motors."

01:44:54 — **Melano:** "Oh. Dual motors. That part OK."

01:44:57 — **Plaintiff:** "They get charged up."

01:44:59 — **Melano:** "They don't need to be recharged?"

01:45:01 — **Plaintiff:** "Just like your phone gets charged."

01:45:02 — **Melano:** "Oh that's why you have a charger."

01:45:04 — **Meza-Gonzalez:** "Yeah."

01:45:05 — **Melano:** "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — **Plaintiff:** "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — **Plaintiff:** "Just like your phone."

01:45:37 — **Melano:** "Yeah thank you. I'm not a—"

01:45:45 — **Melano:** "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 — [Squad car leaves the scene with Plaintiff.]

01:57:10 — [Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: June 18, 2026

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

1455 Cat Tail Drive

Stockton, CA 95204

Telephone: (209) 801-4442

Email: bnn.cdl@gmail.com